



INDIAN POLITY

- NCSC, NCST AND NCBC
- SPECIAL OFFICER FOR LINGUISTIC MINORITIES

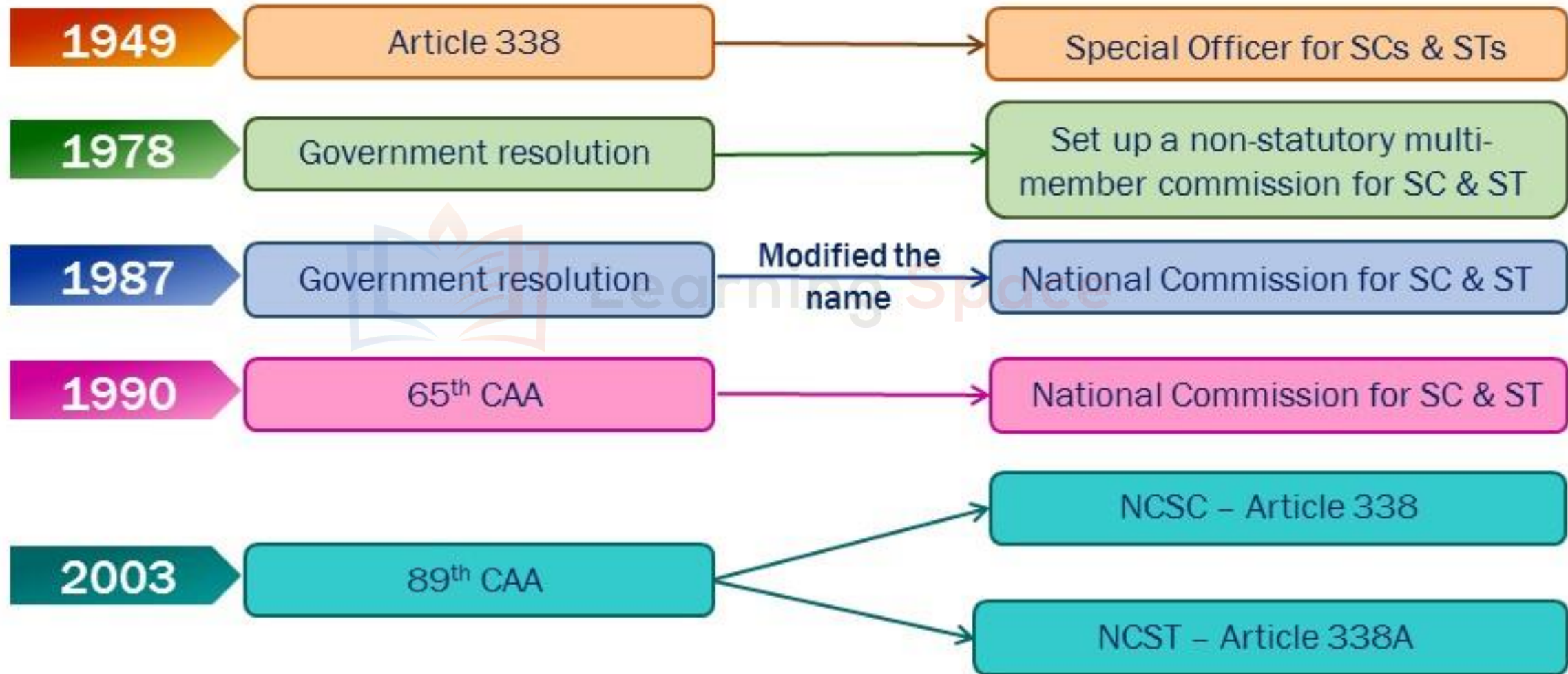
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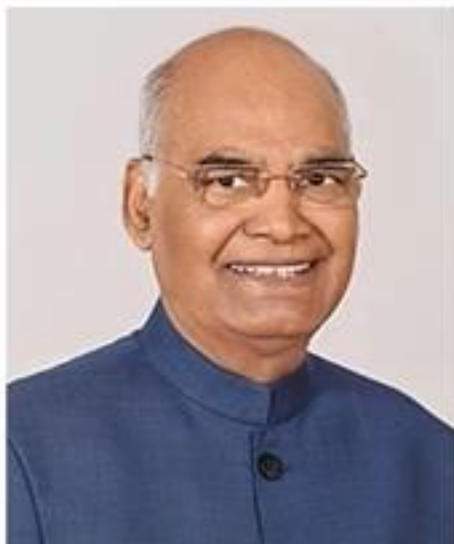


EVOLUTION OF THE COMMISSION



COMPOSITION OF NCSC & NCST

Let us see both the NCSC and NCST together for a comparative understanding of both the bodies!



- 1 The separate National Commission for SCs/STs came into existence in 2004.
- 2 It consists of a chairperson, a vice-chairperson and three other members.
- 3 They are appointed by the President by warrant under his hand and seal.
- 4 Their conditions of service and tenure of office are also determined by the President.

What do you understand by the phrase "appointment by the president by a warrant under his hand and seal"?



- ✓ This means that the appointment letter bears the signature and seal of the President of India.
- ✓ Certain other appointments don't require the signature of the President as he can delegate this to other authority.
- ✓ In that case the appointment letter will bear the signature of the respective authority.
- ✓ Literally speaking the 'warrant under his hand' is the document the President is signing, and after signing his Presidential seal is imprinted to authenticate his signature and his high office.



The red wax seal signifies that this letter is genuine and has been issued by the President of India. It means that the President is appointing the person for this position under his own name and signature.

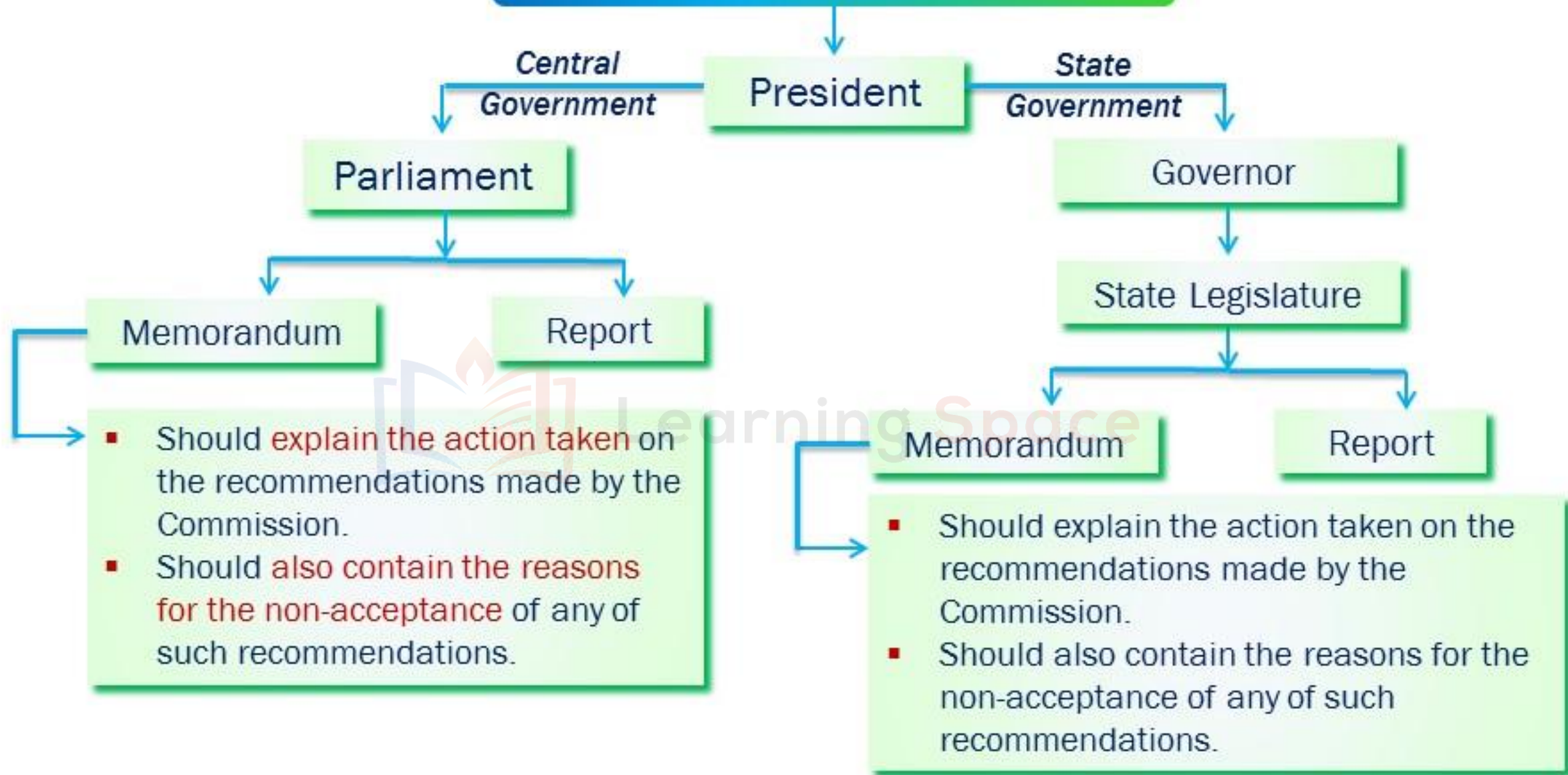
FUNCTIONS OF THE COMMISSION

- 1 To **investigate and monitor** all matters relating to the constitutional and other legal safeguards for the SCs and to evaluate their working.
- 2 To **inquire into specific complaints** with respect to the deprivation of rights and safeguards of the SCs.
- 3 To **participate and advise on the planning process of socio-economic development** of the SCs and to evaluate the progress of their development under the Union or a state.
- 4 To **present to the President**, annually and at such other times as it may deem fit, **reports** upon the working of those safeguards.
- 5 To make **recommendations as to the measures** that should be taken by the Union or a state for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the SCs.
- 6 To **discharge such other functions** in relation to the protection, welfare and development and advancement of the SCs as the president may specify.

The same points applies to NCST as well with small changes in the nomenclature (say, SCs to be replaced by STs).

NCSC AND NCST

REPORT OF THE COMMISSION



POWERS OF THE COMMISSION

The Commission, while investigating into any complaint, has all the powers of a civil court trying a suit and in particular in respect of the following matters:

- 1** Summoning and enforcing the attendance of any person from any part of India and examining him on oath;
- 2** Requiring the discovery and production of any document;
- 3** Receiving evidence on affidavits;
- 4** Requisitioning any public record from any court or office;
- 5** Issuing summons for the examination of witnesses and documents;
- 6** Any other matter which the President may determine.

The Central and State govts are required to consult the Commission on all major policy decision affecting the SCs. The Commission is also required to discharge similar functions with regard to the Anglo-Indian Community as it does with respect to the SCs.

**GS 2 SYLLABUS: APPOINTMENT TO VARIOUS
CONSTITUTIONAL POSTS, POWERS, FUNCTIONS AND
RESPONSIBILITIES OF VARIOUS CONSTITUTIONAL BODIES.**

1

Discuss the duties of the newly constituted National Commission for Backward Classes. Also discuss the issues associated with the new body in comparison to the old one.

2

*Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions?
Examine.*

NATIONAL COMMISSION FOR BACKWARD CLASSES

ARTICLE 338-B



- 1** This Commission is exclusively for the social and educationally backward classes.
- 2** It shall consist of a chairperson, vice-chairperson and three other members.
- 3** These members shall be appointed by the President by warrant under his hand and seal.

EVOLUTION OF THE NCBC

1

Two Backward Class Commissions were appointed in 1950s and 1970s under Kaka Kalelkar and B.P. Mandal respectively.

2

In Indra Sawhney case of 1992, SC had directed the govt to create a permanent body to entertain, examine and recommend the inclusion and exclusion of various BCs.

3

In pursuant to these directions parliament passed National Commission for Backward Classes Act in 1993 and constituted the NCBC.

6

The bill got the President assent in August 2018 and provided the constitutional status to NCBC.

5

Parliament has also passed a separate bill to repeal the National Commission for Backward Classes Act, 1993, thus 1993 act became irrelevant after passing the bill.

4

123rd Amendment bill of 2017 was introduced in Parliament to safeguard the interests of backward classes more effectively.

NATIONAL COMMISSION FOR BACKWARD CLASSES

RELEVANT CONSTITUTIONAL PROVISIONS

- 1** Article 340 deals with the need to, inter alia, identify those "socially and educationally backward classes", understand the conditions of their backwardness, and make recommendations to remove the difficulties they face.
- 2** 102nd Constitution Amendment Act inserted new Articles 338 B and 342 A.
- 3** The amendment also brings about changes in Article 366.
- 4** Article 342 A empowers President to specify socially and educationally backward classes in various states and union territories. He can do this in consultation with Governor of concerned State. However, law enacted by Parliament will be required if list of backward classes is to be amended.
- 5** Article 338B provides authority to NCBC to examine complaints and welfare measures regarding socially and educationally backward classes.

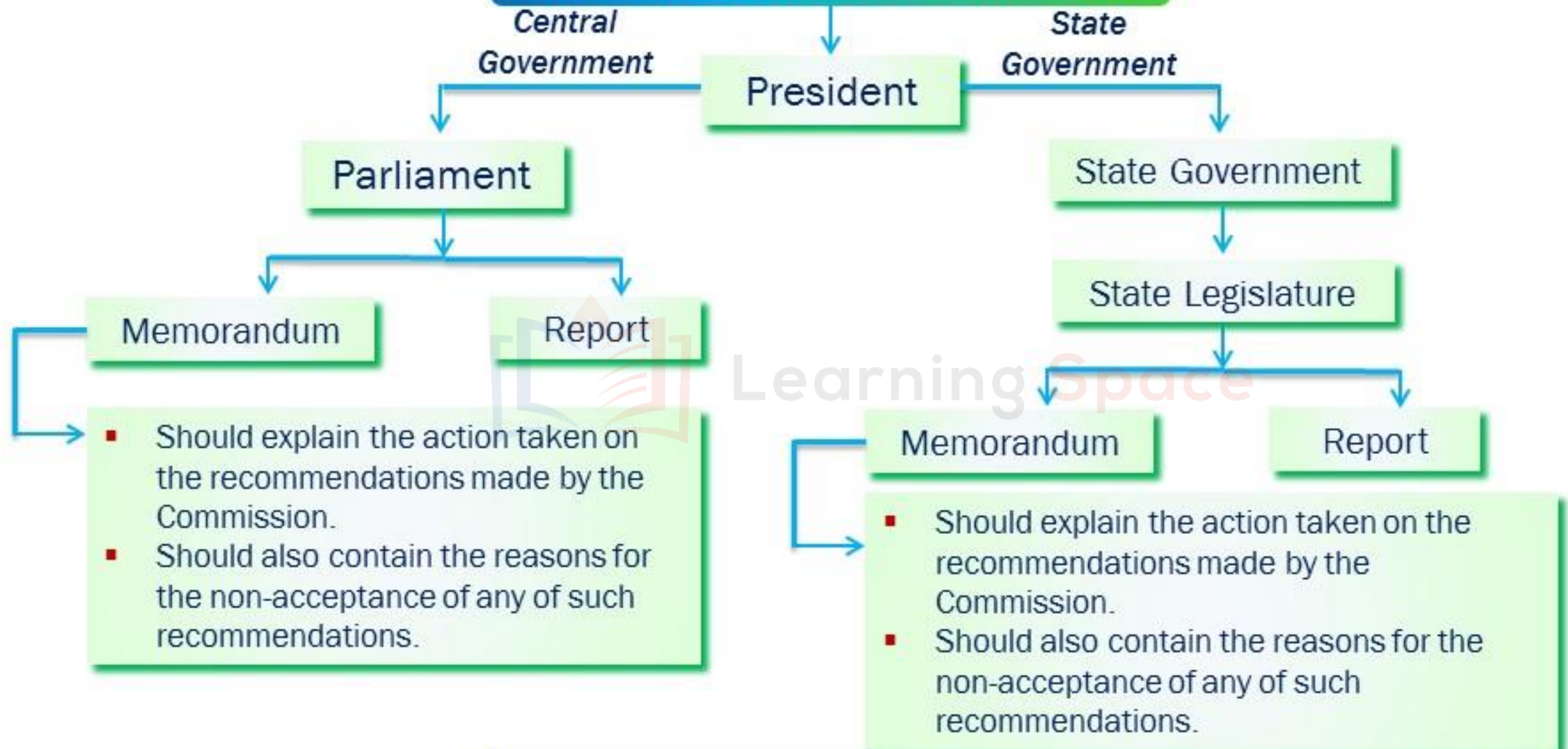
NATIONAL COMMISSION FOR BACKWARD CLASSES

DUTIES OF THE COMMISSION

- 1 To **investigate and monitor** all matters relating to the safeguards provided for the SEBCs
- 2 To **inquire into specific complaints** with respect to the deprivation of rights and safeguards of the SEBCs.
- 3 To **participate and advise** on the socio-economic development of the SEBCs and to evaluate the progress of their development.
- 4 To present **reports** to the President.
- 5 To make **recommendations** for the effective implementation of measures for the protection and welfare of SEBCs.
- 6 To **discharge** such other functions in relation to the protection, welfare and development and advancement of the SEBCs.

NATIONAL COMMISSION FOR BACKWARD CLASSES

REPORT OF THE COMMISSION



NATIONAL COMMISSION FOR BACKWARD CLASSES

POWERS OF THE COMMISSION

The Commission has all the powers of a civil court trying a suit and in particular in respect of the following matters:

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- 5 Issuing commissions for the examination of witnesses and documents
- 6 Any other matter which the President may determine

APPOINTMENT TO VARIOUS CONSTITUTIONAL POSTS

HOW DOES THE NEW COMMISSION DIFFERENT FROM THE OLD ONE?



- 1 Unlike the old one, New NCBC's chairman and members terms are **not fixed**. So, they are at the **mercy** of the government.

- 2 New NCBC has been stripped of the power of **advising**, that **was generally binding**, on inclusion and exclusion in OBCs list.

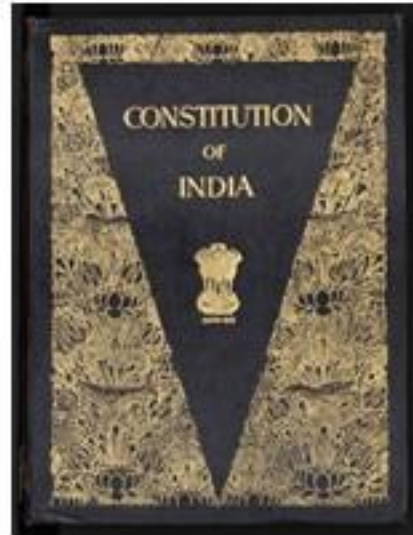
- 3 Against historical fact and concept of injustices, NCBC has been given the same status as National Commission on SCs making **OBCs on par with SCs**.

- 4 The **two bodies may have a clash** in case of a dispute involving an OBC and an SC.

- 5 Until now, states had the power to make its own OBCS list. Now, there will be only a **central list made by Parliament**.

SPECIAL OFFICER FOR LINGUISTIC MINORITIES

CONSTITUTIONAL PROVISIONS



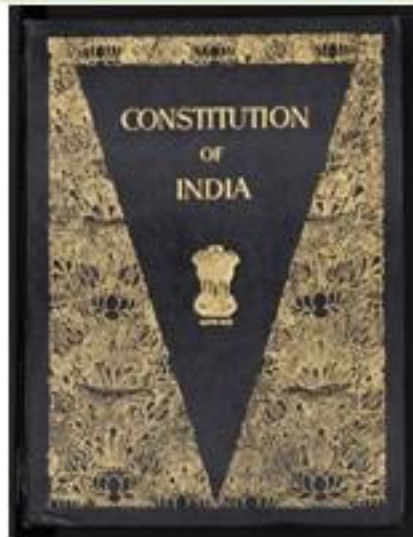
- 1 Originally, the Constitution of India did not make any provision with respect to the Special Officer for Linguistic Minorities.
- 2 Later, the States Reorganization Commission (1953-55) made a recommendation in this regard.

Accordingly, the Seventh Constitutional Amendment Act of 1956 inserted a new Article 350-B in Part XVII of the Constitution.

SPECIAL OFFICER FOR LINGUISTIC MINORITIES

WHAT IS THE ARTICLE 350B SAY?

- 1 There should be a Special Officer for Linguistic Minorities.



The Constitution does not specify the qualifications, tenure, salaries and allowances, service conditions and procedure for removal of the Special Officer for Linguistic Minorities.

- 2 He is to be appointed by the President of India.
- 3 It would be the duty of the Special Officer to investigate all matters relating to the safeguards provided for linguistic minorities under the Constitution.
- 4 He would report to the President upon those matters at such intervals as the President may direct.
- 5 The President should place all such reports before each House of Parliament and send to the governments of the states concerned.

SPECIAL OFFICER FOR LINGUISTIC MINORITIES

COMMISSIONER FOR LINGUISTIC MINORITIES



- 1** In pursuance of the provision of Article 350-B of the Constitution, the office of the Special Officer for Linguistic Minorities was created.
- 2** He is designated as the **Commissioner for Linguistic Minorities**.
- 3** The Commissioner for Linguistic Minorities (CLM) Organization came into existence in July, 1957 at New Delhi.
- 4** After a brief period it was shifted to Allahabad and now it has been shifted to New Delhi with effect from 1st June 2015.
- 5** At the Central level, the Commissioner falls under the Ministry of Minority Affairs.
- 6** Hence, he submits the annual reports or other reports to the President through the Union Minority Affairs Minister.

SPECIAL OFFICER FOR LINGUISTIC MINORITIES

FUNCTIONS OF THE COMMISSIONER



- 1 To **investigate** all matters related to **safeguards** provided to the linguistic minorities.
- 2 To **submit** to the President of India, the **reports** on the status of implementation of the Constitutional and the nationally agreed safeguards for the linguistic minorities
- 3 To **monitor** the **implementation** of safeguards through questionnaires, visits, conferences, seminars, meetings, review mechanism, etc.

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